

Mahentesh M Hugar vs Nil on 18 November, 2011

Bench: Mohan Shantanagoudar, Ravi Malimath

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IN THE HIGH COURT OF KARNATAKA
CIRCUIT BENCH AT DHARWAD

DATED THIS THE 18 DAY OF NOVEMBER 2011
'RE mi

THE HON StE MR JUDGE MOHAN SHANTANAGUDAR
AND
THE HON StE MR JUSTICE RAVI MALEIMATH
M F A NP 21176/2011(Mf)

BETWEEN

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This MFA is filed under Section 19(1) of the Family

Courts Act, 1984, against the order and decree dated
18J02010 passed in MC.No250/2009 on the file of the
Presiding Officer, Family Court, Belgaum, dismissing the
petition filed under Section 13B of Hindu Marriage Act.

This MFA coming on for hearing, this day MOHAN

SHANTANAGUDAR, J, delivered the following:

JUDGMENT

Questioning the order dated 18J02010, passed by the Family Court, Belgaum in MCNo250/2009, this appeal is filed. The appellants herein had jointly filed petition under Section 13B of the Hindu Marriage Act, seeking dissolution of marriage by mutual consent. The same is rejected on the ground that the petitioners therein (appellants herein) were not living separately for a period of one

year prior to presentation of petition for divorce. Both the parties have filed this appeal jointly.

2. The appellants are before the Court. They submit jointly that it is not possible for them to live amicably and they have decided to live apart. It is brought to the notice of the Court by Sri Jagadish Patil, learned counsel appearing for the appellants that both the parties have decided to remarry with different persons and that even engagements have taken place. According to him, they are waiting for orders of this Court for getting remarried.

3. We find that the divorce petition was filed on 16.10.2009, whereas marriage of the couple was performed on 21.4.2008. Thus, it is clear that the petition was presented after one year of the marriage. However, in one stray sentence in the affidavit, it was mentioned that they lived together for a period of one year. The stray sentence should not have been given much weightage by the Court below while coming to the conclusion particularly having regard to the specific case of the parties that they have been living apart for more than one year. Even before this Court the appellants have submitted that they have been living apart for more than one year.

4. We are convinced that the parties are not willing to live together even if some more time is granted to them for compromise. Both the parties are young and they want to remarry with other persons. Since the parties want to settle their life at any point of time, i.e. pass the foregoing order, each and one would claim anything from the other either in the form of cash or in the form of kind.

Appeal is allowed accordingly.

Sd!...

JUDGE Sal JUDGE .